Sturgeon ruling on flight delay compensation

Air passengers have rights in the event of delayed or cancelled flight. Those allow you to claim up to €600 per passenger!

Claim compensaion

Increase your chances of getting flight compensation!

Departure airport

e.g. Amsterdam or AMS

Final destination

e.g. Amsterdam or AMS

Claim now

Key takeaways on the Sturgeon ruling (2009)

Delayed flight of more than 3 hours upon arrival? You can claim flight compensation up to €600 per passenger!

You can claim flight compensation for cancelled flight less than 14 days before departure. You could, additionally, also ask for the full refund of your ticket.

Flight-Delayed.co.uk is expert in air passengers rights. We've been defending air passenger from more than 10 years!



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Within the European Union, there are rules and laws that determine how airlines can and cannot treat passengers. When you buy a

flight ticket, you agree to the airline's terms and conditions. This does not, however, mean that the airline can treat you how they want to and with complete disregard as long as it's featured in their terms and conditions. They have to follow the guidelines. This applies to European airlines, but also to non-European airlines that fly to or from Europe.

Get flight compensation according to the Sturgeon Ruling!

Claim now

The Sturgeon Ruling: what is it?

In order to ensure that air passengers were sufficiently protected, the European Parliament and European Commission set up Regulation (EC) no 261/2004. This document establishes rules about the criteria and conditions for flight cancellation and denied boarding. Five years later, in 2009, it was determined that these rules shouldn't just apply to cancelled flights and cases of denied boarding, but also to flight delays. That means all air passengers who experience delays in Europe qualify for care and, in many, cases also compensation.

The Sturgeon Ruling of 19 November 2009 was a joint case of passengers against airlines Condor and Air France. **It was ruled that, despite there not being express provision in Regulation (EC) no 261/2004 to compensate passengers for delays, passengers would now be entitled to the compensation, as set out in Article 8, for any delay in excess of three hours**, providing the air carrier cannot raise a defence of 'extraordinary circumstances'.

What did the court say regarding flight delay compensation?

The European Court of Justice determined that long delays were as detrimental to passengers as cancellations and stated that: "Articles 5, 6 and 7 of Regulation EC 261/2004 must be interpreted as meaning that passengers whose flights are delayed may be treated, for the purposes of the application of the right to compensation, as passengers whose flights are cancelled and they may thus rely on the right to compensation laid down in Article 7 of the regulation where they suffer, on account of a flight delay, a loss of time equal to or in excess of three hours, that is, where they reach their final destination three hours or more after the arrival time originally scheduled by the air carrier."

How long do flight delays have to be to claim compensation?

The court ruled, in the Sturgeon judgement, that you'll be entitled to claim compensation for your delayed flight if your delay was greater than 3 hours. If your delay is over 2 hours, you are entitled to the compulsory care as stipulated by the Montreal Convention and reinforced by EC 261/2004.

Unsure if you can claim flight compensation?

You can easily check your flight with our Claim Calculator!

Claim now



How do I calculate how long my delay was?

This was also set up by the ruling, the total time of your delay is determined **by the difference in time between your actual arrival time at your final destination (connecting flights included) and the scheduled arrival time on your e-ticket or booking confirmation.** Please note that the airline has the right to change your schedule if it happens 14 days prior to your departure. If they change your schedule, or simply fail to inform you, less than 14 days prior to your departure, you may also be entitled to compensation for your schedule change.

What's the total amount in compensation for a flight delay?

The total amount you may receive in compensation is defined by the flight's itinerary and the distance between the airport of departure and arrival. **Connecting flights are taken into account when assessing your situation. In other words, your whole booking is covered by the regulation.** Consequently, it's the distance between your initial airport of departure and your final destination what will determine the total amount of money that you

may receive in compensation for your delayed, overbooked or cancelled flight. Connecting flights are covered as long as they have been booked under the same reference. Put differently, if they are part of the same ticket or itinerary.

Distance of your flight	Compensation
Flights **shorter than 1,500 km**	Get £220 per passenger
Flight between **1,500 and 3,500 km**	Get £350 per passenger
Flights of **over 1,500 kilometres within the EU**	Get £350 per passenger
Flights of **over 3,500 kilometres outside of the EU**	Get €600 per passenger



Please remember that if your flight travelled a distance greater than 3,500 kilometres and it was delayed more than 3 hours but fewer than 4, then the total amount of compensation is reduced by 50%. **The regulation defines the total amounts in euros and they are €250, €400 and €600.**

What's the difference between a flight delay and a flight cancellation?

A flight cancellation happens when the airline scraps the flight altogether. This implies that the flight itself never took place and no passengers were transported. Sometimes, the airline may say that

the flight is being pushed back 24 hours and refuse to call it a cancellation. However, such an event would be considered a flight cancellation.

Flight delays occur when the flight in question is in fact operated by the carrier but sees a disruption that causes the passengers to arrive late according to their bookings and tickets. In both situations, you are claiming to be compensated for the loss of time originated by the disruption of your flight.

When can one claim for a delayed flight

There are differences between claiming for a cancelled flight and a delayed flight. However, if your flight was delayed, in accordance with the above-mentioned ruling, **you may claim compensation if:**

- **You arrived at your final destination more than 3 hours late**
- **Your departure airport was within an EU member state or if you were flying with an EU airline**
- The delay of your flight was not caused by an extraordinary circumstance

The total amount you can receive in compensation varies depending on the distance travelled by your flight and sometimes also on the total amount of time you are delayed at your final destination.

Flight delayed by more than 3 hours?

Get up to €600 in flight compensation with Flight-Delayed.co.uk!

Claim now



When can one claim for a cancelled flight

If your flight was cancelled, then you have the right to claim compensation according to EC 261/2004. However, as with flight delays, there are certain conditions that must be met in order to be entitled to compensation. In the case of cancellations, this is a little more complicated, as the moment you are informed of the cancellation also comes into play. At this point, we will try to keep it simple and understandable, but you can always use our complaint calculator and check your flight. As far as flight cancellations are concerned**, the moment you were informed of the interruption is very important:**

- If you were informed more than **14 days before your departure, you are not entitled to compensation**
- If the airline informed you of the cancellation of your flight between 7 and 14 days in advance and they have managed to

book you on an alternative or replacement flight that 1. does not depart 2 hours earlier than scheduled or 2. arrives later than 4 hours after your original scheduled time, then they are not obliged to pay you compensation. In other words, to claim compensation, you would have to arrive +4 hours late or leave 2+ hours earlier than planned in your itinerary.

- If you were informed of the cancellation **no earlier than 7 days before the departure date, you are entitled to compensation if you arrived at least 2 hours later than planned.** (This is the most common case)

All of the cases mentioned above will only grant you the right to be compensated if your cancellation was not due to an extraordinary circumstance. We will talk more about these circumstances later, but it should be noted now that they also apply to flight delays.

One more thing to take into account, if your flight is cancelled the airline has the obligation to take you, eventually, to your final destination or to refund your ticket if you do not wish to travel anymore because you haven't been offered a suitable alternative flight.

Cancelled flight less than 14 days before leaving?

Get the help you need to get your flight compensation up to €600!

Claim now



The Sturgeon ruling on extraordinary circumstances

It was also ruled that under the definition of 'extraordinary circumstances', **technical faults within an aircraft should not be included** and therefore an air carrier cannot rely on a technical fault within an aircraft as a defence from a valid claim under the Regulation. Various passenger rights groups reported the case and encouraged passengers to bring claims against airlines in the event of a delay of over three hours.

The Sturgeon ruling was reconfirmed in a ruling of the European Court of Justice on 23 October 2012 in Nelson v Deutsche Lufthansa AG and R (TUI Travel, British Airways, Easyjet and IATA) v Civil Aviation Authority.

How long do I have to claim compensation according to the Sturgeon ruling?

The regulation itself does not determine the statute of limitations for claiming your compensation. That responsibility falls under the relevant authorities of each country. In the UK, that is the Civil Aviation Authority and the timeframe **is 6 years after the date of your disrupted flight.** It varies from country to country so make sure that you've checked your flight before you leave.

Download a PDF file **of the document.**

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